Jahid vs The State Of Nct Of Delhi & Anr on 19 November, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ BAIL APPLN. 3967/2025 & CRL.M.A. 30902/2025

JAHID
Through: Mr. Pr
Ms. Ra
Aditya

versus

THE STATE OF NCT OF DELHI
& ANR. .....Responden
Through: Mr. Ritesh Kumar Bahri,
APP for the State with M
Divya Yadav & Mr. Lalit
Luthra, Advs.
Inspector Manjeet Kaur,
PS- Cyber Cell, Crime
Branch

CORAM:
HON'BLE MR. JUSTICE AMIT MAHAJAN
ORDER

% 19.11.2025

1. The present application is filed by the applicant seeking regular bail in FIR No. 124/2025 dated 24.05.2025 registered at Police Station Crime Branch for the offences under Sections 316(2)/318(4)/336(3)/61(2) of the Bhartiya Nyaya Sanhita, 2023 ('BNS').

2. Briefly stated, it is alleged that on 24.05.2025, acting upon a secret information regarding delivery of fake/synthetic bank account kits being used by fraudsters/scammers in sextortion, house-arrest frauds, debit/credit card frauds and other cyber- crimes a raid was conducted. Pursuant to the raid, three accused persons were apprehended.

3. During the course of investigation, at the instance of This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 21/11/2025 at 22:26:55 accused Gaurav Barua, a raid was conducted at A-592, Gali No. 39-8, New Ashok Nagar, Delhi, where the applicant along with another accused person was arrested.

4. It is alleged that one bank account kit, one laptop, and two mobile phones were recovered from the rented accommodation of the applicant. It is alleged that the applicant purchased the bank account kit from accused Gaurav and had been using the same for cyber-fraud activities.

5. It is alleged that the applicant would send friend requests to victims through Facebook, obtain their WhatsApp number and initiate video calls with them. Further, the applicant would allegedly play pornographic clips to the victims, record their reaction and then extort them by threatening to circulate such videos on social media.

6. It is alleged that upon inspecting the IMEI of the phone recovered from the applicant on 'Samanvaya Portal' of MHA, twelve complaints related to online fraud and circulation of sexually explicit material from various states were found linked to the said device.

7. It is alleged that co-accused Vipin Kumar disclosed that he opened multiple bank accounts on the instance of the applicant to receive and withdraw extortion money and admitted to transferring around 15-20 lakhs from the said accounts to the applicant over a period of one year.

8. It is further alleged that Whatsapp Chats were recovered from the applicant's phone which clearly show him engaging in the alleged acts of extorting victims.

9. The learned counsel for the applicant submits that the applicant is innocent and he has been falsely implicated in the This is a digitally signed order.

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10. He submits that co-accused Ujjawal Pandey, Gaurav Barua, Yug Sharma, Dilshad Ali have been admitted on bail by the learned Trial Court and the applicant is entitled to bail on account of parity.

11. He submits that all material evidence, including electronic devices have been seized and custodial interrogation of the applicant is no longer required.

12. Per contra, the learned Additional Public Prosecutor for the State vehemently opposes the grant of any relief to the applicant.

13. He submits that the investigation is still ongoing and the applicant has cheated and extorted a large number of innocent persons.

14. He submits that if the applicant is admitted to bail, he may tamper with the digital evidence, which is essential for further investigation in the present case.

15. I have heard the counsel and perused the record.

16. It is well settled that the Court, while considering such applications, has to keep certain factors in mind, such as: (i) the nature or gravity of the offense; (ii) the character of the evidence and circumstances unique to the accused; (iii) the likelihood of the accused evading justice; (iv) the potential impact of the release on prosecution witnesses and its societal repercussions; and (v) the

probability of the accused engaging in tampering.

17. It has been held in a catena of judgments that while considering an application of the accused seeking bail, the Court would not be justified in going into evidence on record at such depth so as to ascertain probability of conviction of the accused as This is a digitally signed order.

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18. The grant of bail should not be arbitrary or whimsical. Being conscious of the fact that individual liberty holds immense significance, it is incumbent upon the Courts to examine and evaluate, albeit briefly, factors such as the prima facie case, the nature and severity of the crime and the accused's likelihood to tamper with evidence, among other considerations as noted above.

19. In the present case, the allegations against the applicant prima facie are serious in nature. It is alleged that the applicant would send friend requests to victims through Facebook, obtain their WhatsApp number and initiate video calls with them. Further, the applicant would allegedly play pornographic clips to the victims, record their reaction and then extort them by threatening to circulate such videos on social media.

20. The learned counsel for the applicant contends that co- accused Ujjawal Pandey, Gaurav Barua, Yug Sharma, Dilshad Ali have been admitted on bail by the learned Trial Court and the applicant is entitled to bail on account of parity. However, the role of the applicant is distinct from the other accused persons who have been admitted on bail. There are specific allegations against the applicant of cyber fraud and extortion and WhatsApp chats of the applicant indulging in the alleged acts have also been allegedly recovered from his mobile phone. Thus, the applicant cannot be granted the benefit of parity.

21. It is pertinent to note that the present case pertains to serious allegations of digital frauds where complex technological mechanisms were employed to defraud gullible victims. Such cases, by their very nature, involve intricate methods and multiple communication devices and are used to mislead unsuspecting This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 21/11/2025 at 22:26:55 victims. A perusal of the record shows that accused Vipin Kumar has disclosed that he opened multiple bank accounts at the instance of the applicant and sent around 15-20 lakhs to the applicant in the past year. Further, it is stated that only one victim has come out so far during the course of investigation, claiming he had been extorted for an amount of 10,000/-. Thus, the possibility of the presence of a large number of victims cannot be ruled out.

22. Such crimes are on the rise and the same tend to be significantly harder to crack due to the boon of technology that is effectively misused by crooks to wreak havoc and evade the law enforcement.

The task of the Investigating Agency seems arduous and they need to be given a fair play in the joints to investigate the matter, admitting the applicant on bail may further impede their investigation if the applicant tampers digital evidence which has not yet been discovered during the course of investigation.

23. It is also important to mention that while deciding the question of bail, the Court must carefully balance the individual's right to liberty with the interests of justice. While the presumption of innocence and the right to liberty are fundamental principles of law, they must be considered in conjunction with the gravity of the offence and its impact on society.

24. Accordingly, taking into account the submissions made by the learned counsel for the parties, and material available on record, this Court is of considered opinion that prima facie, there are serious allegations against the applicant which at this stage cannot be said to be without any material.

25. Considering the facts and circumstances of this case, this Court is not inclined to grant bail to the applicant at this juncture.

26. It is made clear that the observations made in the present This is a digitally signed order.

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27. In view of the above, the present bail application is dismissed.

AMIT MAHAJAN, J NOVEMBER 19, 2025 "SS"

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